

23STCV19605 23STCV19605

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-25

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Case Number: 23STCV19605 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE RULING:

Judgment Creditor Sunset Stanley, LLC's Motion to Compel

Responses to Post-Judgment Special Interrogatories (Set One) and Request for

Order Awarding Monetary Sanctions is denied without prejudice.

Analysis:

On August 16, 2023, Plaintiff Sunset Stanley, LLC ("Judgment

Creditor") filed the instant action against Defendant Monika Nikkaran

("Judgment Debtor"). Judgment Debtor filed an Answer on November 17, 2023. The

matter came for trial and after taking the matter under submission, the Court

ordered judgment in favor of Judgment Creditor. (Minute Order, 03/30/26.)

Judgment Creditor filed and personally served the instant Motion to Compel

Responses to Post-Judgment Special Interrogatories (Set One) and Request for

Order Awarding Monetary Sanctions. No opposition has been filed to date.

Discussion

The Motion is brought pursuant to Code of Civil Procedure

section 2030.300 on the grounds that Judgment Debtor did not serve any

responses to Post-Judgment Special Interrogatories (Set One). Specifically,

Judgment Creditor served Judgment Debtor with Post-Judgment Special

Interrogatories (Set One) on June 3, 2026. (Motion, Abramson Decl., Exh. 1.)

Based on service by electronic mail, Judgment Debtor's responses were due by

July 7, 2026. (Code Civ. Proc., §§ 2030.260, 1010.6, subd. (a)(4)(B).) As of

the filing of the instant Motion on July 27, 2026, Judgment Debtor has not

served responses or otherwise communicated with Judgment Creditor. (Motion,

Bell Decl., ¶¶7-9.)

The Motion does not cite the applicable statutes. Code of Civil Procedure section 2030.300

authorizes the Court to order further responses to interrogatories. The

statute states in relevant part:

(a) On receipt of a response to

interrogatories, the propounding party may move for an order compelling a further

response if the propounding party deems that any of the following apply:

(1) An answer to a particular

interrogatory is evasive or incomplete;

(2) An objection to an interrogatory

is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a), emphasis

added.) Section 2030.290, on the other hand, applies

to motions to compel initial responses.

(See Code Civ. Proc., § 2030.290.)

Further, a motion to compel pursuant to Code of Civil

Procedure sections 2030.290 or 2030.300 may be brought post-judgment only as authorized

by Code of Civil Procedure sections 708.010 to 708.030. Section 708.020 permits a Judgment Creditor to

propound written interrogatories in the manner provided in Chapter 13, commencing

with Section 2030.010, to aid in enforcement of a money judgment, and includes requirements

specific to the post-judgment context.

Absent the authorization under Section 708.020, the Civil Discovery Act

does not apply to post-judgment discovery.

(Code Civ. Proc., § 2024.020 (parties are entitled to conclude discovery

before trial.)

Motions should be premised on accurate authority. The Court will deny the motion to compel

without prejudice to refiling under the correct Code provisions.

Conclusion

Judgment Creditor Sunset Stanley, LLC's Motion to Compel

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Moving party to give notice.